

File No.: EXP202305308

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On March 10, 2023, a complaint was filed with the Spanish Agency for Data Protection against CIMIEDI GARAVI, S.L.P., with NIF B95885869 (hereinafter, the complained party).

The reasons for the complaint are as follows:

Consent is granted to manage the contractual relationship and commercial communications.

The document contains two boxes (Yes, I consent. No, I do not consent). Consent is granted for both purposes, and the affected party cannot choose which purposes to grant consent for. If they do not sign, healthcare assistance is not provided, according to the complainant.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party/ALIAS, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements established in the data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) through electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on May 8, 2023, as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, an informational copy was sent by postal mail that could not be delivered due to absence during delivery. In this notification, they were reminded of their obligation to communicate electronically with the Administration, and they were informed of the means to access such notifications, reiterating that, henceforth, they would be notified exclusively by electronic means.

THIRD: On June 10, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, having knowledge of the following points:

Regarding the procedure established to inform patients of the processing of their data and to obtain their consent, the representatives of the entity report that:

When a patient visits the clinic, as the Data Controller, they are informed in the terms provided in the data protection regulations and are asked to sign as read, although in this case, the affected party refused to sign it.

The legitimacy for the processing of their data is based on the existing contractual relationship, as well as their voluntary registration at the clinic to receive treatment.

The processing of data is necessary for the execution of a contract in which the interested party is a party or for the application, at their request, of pre-contractual measures.

On the other hand, it is not necessary for the doctor or the healthcare center to request consent from patients for the collection and use of personal and health data if they are to be used for purposes of preventive or occupational medicine, assessment of the worker's capacity, medical diagnosis, provision of assistance or treatment of a healthcare or social nature, or management of healthcare and social assistance systems and services.

They provide a copy of the consent document.

Regarding commercial communications, there is a selectable box with the following text:

Additionally, we request your consent for:

The processing of your data consisting of name and surname, phone number, and address to use them for commercial communications or information:

☐ Yes, I consent ☐ No, I do not consent

The consent includes the identity of the data controller, the purpose of the processing, how to exercise their rights of access, rectification, and deletion, as well as where to consult additional detailed information that they also provide.

Regarding the existence of a procedure for the patient to oppose secondary processing of personal data not related to healthcare, such as receiving commercial information, etc., and whether opposing these secondary data processing activities implies not receiving medical treatment, the representatives of the entity state the following:

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In the information clause provided to patients when collecting their personal data, there is a clause that additionally asks whether they consent to the use of their data for commercial purposes.

In the event that the patient indicates that they do not consent, they still receive medical treatment; the only thing they will not receive is commercial communications.

Regarding whether it is recorded that the claimant has given their consent for the processing of personal data or whether medical action was not performed due to not signing these documents, the representatives of the entity indicate that:

The medical action that the affected party needed and authorized was carried out correctly, regardless of whether they had or had not given their consent for the processing of their personal data.

In fact, after the operation performed by the consulting physician, the affected party returned for a follow-up consultation regarding the operation that had been performed.

Regarding the legal basis, the representatives of the entity indicate that it is not necessary for the physician or the healthcare center to request consent from patients for the collection and use of personal and health data if it is to be used for preventive or occupational medicine, assessment of the worker's capacity, medical diagnosis, provision of healthcare or social treatment, or management of healthcare and social assistance systems and services. (The legal basis for this data processing is established in Article 6.1.b) of the GDPR for private health insurance entities.)

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, to the extent that they do not contradict them, by the general rules on administrative procedures."

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II

Legality of the processing of special categories of data

Article 9 of the GDPR establishes the following:

1. The processing of personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, as well as the processing of genetic data, biometric data aimed at uniquely identifying a natural person, data concerning health, or data concerning a natural person's sex life or sexual orientation is prohibited.

2. Paragraph 1 shall not apply when one of the following circumstances applies:

- a) the data subject has given explicit consent to the processing of such personal data for one or more specified purposes, except where Union or Member State law provides that the prohibition referred to in paragraph 1 may not be lifted by the data subject;
- b) the processing is necessary for compliance with a legal obligation to which the data controller is subject or for the exercise of rights or the fulfillment of obligations in the field of employment law and social security and social protection, to the extent that such processing is authorized by Union or Member State law or a collective agreement under Member State law that provides adequate safeguards for the fundamental rights and interests of the data subject;
- c) the processing is necessary to protect the vital interests of the data subject or of another natural person, in the event that the data subject is not physically or legally capable of giving consent;
- d) the processing is carried out in the course of legitimate activities by a foundation, association, or any other not-for-profit body with a political, philosophical, religious, or trade union aim, provided that the processing relates solely to the members or former members of the body or to persons who have regular contact with it in connection with its purposes and that the personal data are not disclosed outside that body without the consent of the data subjects;
- e) the processing concerns personal data which the data subject has made public;
- f) the processing is necessary for the establishment, exercise, or defense of legal claims or whenever courts are acting in their judicial capacity;
- g) the processing is necessary for reasons of substantial public interest, on

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the basis of Union law or the law of the Member States, which must be proportional to the objective pursued, respect in essence the right to data protection, and establish adequate and specific measures to protect the interests and fundamental rights of the data subject;

h) the processing is necessary for the purposes of preventive or occupational medicine, assessment of the worker's capacity, medical diagnosis, provision of health or social care, or management of health and social care systems and services, based on Union law or the law of the Member States or under a contract with a health professional and without prejudice to the conditions and guarantees provided for in paragraph 3;

i) the processing is necessary for reasons of public interest in the field of public health, such as protection against serious cross-border threats to health, or to ensure high standards of quality and safety of health care and of medicines or medical products, based on Union law or the law of the Member States that establishes adequate and specific measures to protect the rights and freedoms of the data subject, in particular professional secrecy;

j) the processing is necessary for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes, in accordance with Article 89, paragraph 1, based on Union law or the law of the Member States, which must be proportional to the objective pursued, respect in essence the right to data protection, and establish adequate and specific measures to protect the interests and fundamental rights of the data subject.

3. The personal data referred to in paragraph 1 may be processed for the purposes mentioned in paragraph 2, letter h), when such processing is carried out by a professional subject to the obligation of professional secrecy, or under their responsibility, in accordance with Union law or the law of the Member States or with the rules established by the competent national authorities, or by any other person also subject to the obligation of secrecy in accordance with Union law or the law of the Member

States or the rules established by the competent national authorities.

4. Member States may maintain or introduce additional conditions, including limitations, regarding the processing of genetic data, biometric data, or data related to health.

Currently, the legitimacy for the processing of health data when visiting a healthcare center for assistance is found in paragraph h) of Article 9.2 of the GDPR highlighted above.

It should be noted, therefore, that we are in one of the cases where, exceptionally, under Article 9.2 of the GDPR, it is possible to lift the prohibition on processing these data.

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III

Legality of data processing

The first paragraph of Article 6 of the GDPR states the following:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or for the implementation at the request of the data subject of pre-contractual measures;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks."

In addition to having legitimacy for the processing of health data in accordance with what is stated in Article 9.2.h) of the GDPR, it is also necessary that there is a legitimate basis from those listed in Article 6 of the GDPR. In this case, since it is a private clinic, the basis of legitimacy for this processing of data is established in Article 6.1.b) of the GDPR for health insurance entities.

However, for the processing of patient data for commercial purposes, the basis of legitimacy is consent. In the information clause provided to patients when collecting their personal data, there is a clause that additionally asks whether they consent to the use of their data for commercial purposes. In the event that the patient indicates that they do not consent, they still receive medical treatment; the only thing they will not receive is commercial communications.

IV

Conclusion

The complaint refers to the request for consent to manage the contractual relationship and commercial communications. Consent is granted for both purposes, and the affected party cannot choose which purposes to grant consent for.

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After the prior investigative actions carried out, it is concluded that consent is only requested for the sending of commercial communications, as the legal basis for data processing is not consent but the contract and the provision of healthcare assistance.

Therefore, based on the information indicated in the previous paragraphs, no evidence has been found that substantiates the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

In accordance with the aforementioned, the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO FILE the present actions.

SECOND: TO NOTIFY this resolution to CIMIEDI GARAVI, S.L.P., and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-301023

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